



CHAPTER xliii

An Act to extend the boundaries of the city and county of the city of Norwich and for other purposes.

[28th July 1950.]

WHEREAS the city and county of the city of Norwich (hereinafter called "the city") is a county borough under the government of the lord mayor aldermen and citizens thereof (hereinafter called "the Corporation"):

And whereas the unrepealed provisions of the local Acts specified in Part I of the schedule to this Act and of the Orders specified in Part II of that schedule are in force in the city:

And whereas the parish of Thorpe next Norwich in the rural district of Blofield and Flegg and the parish of Sprowston in the rural district of Saint Faith's and Aylsham are respectively situate in the administrative county of Norfolk and adjoin the city:

And whereas it is expedient to alter and extend the boundaries of the city so as to include therein parts of the said parishes of Thorpe next Norwich and Sprowston:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

23 & 24 Geo. 5.
c. 51.

May it therefore please your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Preliminary

Short and
collective
titles.

1.—(1) This Act may be cited as the Norwich Extension Act 1950.

(2) The local Acts as defined in the next following section and this Act may be jointly cited as the Norwich Corporation Acts and Orders 1726 to 1950.

Interpretation.

2.—(1) In this Act unless the subject or context otherwise requires—

19 Geo. 5.
c. 17.

“The Act of 1929” and “the Act of 1933” mean respectively the Local Government Act 1929 and the Local Government Act 1933 ;

“The added areas” means the added parts of Thorpe next Norwich and Sprowston ;

“The added part of Thorpe next Norwich” and “the added part of Sprowston” mean respectively the part of the parish of Thorpe next Norwich and the part of the parish of Sprowston which are respectively included within the inner edge of the pink line on the city map and “the excluded part of Thorpe next Norwich” and “the excluded part of Sprowston” mean respectively the remaining parts of those parishes ;

“The appointed day” means the first day of April nineteen hundred and fifty-one ;

“The city” means until the appointed day the existing city and county of the city of Norwich and thereafter the city as extended by this Act ;

“The city map” means the map signed in triplicate by the Right Honourable the Lord Merthyr the chairman of the committee of the House of Lords to which the Bill for this Act was referred one copy of which map has been deposited in the office of the Clerk of the Parliaments House of Lords one in the Private Bill office of the House of Commons and one with the town clerk at his office ;

“The Corporation” means the lord mayor aldermen and citizens of the city ;

“The council” means the council of the city ;

“The county” means the administrative county of Norfolk and “the county council” means the county council of the county ;

- “Existing” in relation to any area altered by this Act means existing immediately before the appointed day ;
- “The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the city ;
- “The local Acts” means the local Acts specified in Part I of the schedule to this Act the Orders specified in Part II of that schedule and so much of the confirmation Acts specified in that Part as relates to those Orders ;
- “The Minister” means the Minister of Health ;
- “The parish councils” means the parish councils of Thorpe next Norwich and Sprowston respectively ;
- “The Rating Act” means the Rating and Valuation Act 15 & 16 Geo. 5. 1925 ; c. 90.
- “The revenues of the Corporation” includes all such funds rates contributions and revenues receivable by the Corporation as are mentioned in section 218 of the Act of 1933 ;
- “The rural districts” means the rural district of Blofield and Flegg and the rural district of Saint Faith’s and Aylsham and “the rural councils” means the rural district councils of those respective districts ;
- “The town clerk” means the town clerk of the city.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

3. Save as otherwise expressly provided and except so far as there may be anything in the subject-matter or context inconsistent therewith this Act shall come into operation on the appointed day : Commence-
ment of Act.

Provided that for the purposes of—

- (a) the compilation alteration or rearrangement of any register of electors made under the Representation of the People Acts ;
- (b) the qualification of candidates for election on or after the sixteenth day of March nineteen hundred and fifty-one to the office of alderman or councillor of the city ;
- (c) any election on or after the sixteenth day of March nineteen hundred and fifty-one for any area affected by this Act and all proceedings preliminary or relating thereto ; and
- (d) the preparation of any precept or contribution order to be issued or made in respect of any period commencing on or after the appointed day ;

this Act shall operate from the date of its passing.

*Extension of city*Extension
of city.

4.—(1) The boundary of the existing city the area whereof is included within the outer edge of the grey line on the city map shall be altered so as to include in addition to that area so much of the rural district of Blofield and Flegg as comprises the added part of Thorpe next Norwich and so much of the rural district of Saint Faith's and Aylsham as comprises the added part of Sprowston.

(2) The boundary of the city shall be that shown by the inner edge of the pink line on the city map and the whole of the area within that boundary shall for all purposes be the city and the county borough of Norwich.

City map.

5.—(1) Copies of the city map certified by the town clerk to be true shall be sent by him as soon as may be after the passing of this Act to the clerk of the county council to the respective clerks to the rural councils to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister to the Minister of Transport to the Minister of Agriculture and Fisheries to the Minister of Town and Country Planning to the Minister of Fuel and Power to the Postmaster-General and to the Boundary Commission for England.

(2) Copies of or extracts from the city map certified by the town clerk to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of such map so far as it relates to the boundary of any area altered by this Act.

(3) The city map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the city and any such person shall be entitled to a copy of or extract from such map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(4) All fees so received shall be carried to the general rate fund.

Alteration
of parishes.

6.—(1) The added parts of Thorpe next Norwich and Sprowston shall be added to and form part of the parish of Norwich.

(2) The excluded part of Thorpe next Norwich and the excluded part of Sprowston shall respectively form the parishes of Thorpe next Norwich and Sprowston.

County
electoral
divisions.

7. The added areas shall be separated from the electoral divisions of the county of which they respectively form part immediately before the appointed day.

Councillors and other members of local authorities

8. The persons who hold office immediately before the appointed day as lord mayor aldermen and councillors of the existing city shall on the appointed day become the lord mayor aldermen and councillors of the city but shall respectively retire from office on the day on which they would have retired from office if this Act had not been passed.

9. Subject to the provisions of the Act of 1933 with respect to the alteration of the boundaries of wards the following provisions shall have effect:—

- (1) The number of aldermen and councillors of the city shall remain unaltered:
- (2) For the purposes of the election of councillors the city shall continue to be divided into sixteen wards;
- (3) The added part of Thorpe next Norwich and the added part of Sprowston shall be included in the Thorpe Ward of the existing city:
- (4) The councillors representing the Thorpe Ward immediately before the appointed day shall be deemed on and after that day to have been elected to represent that ward as altered by this section and shall continue in office until they would have gone out of office if this Act had not been passed.

10. For the purposes of the application to the city of the provisions of paragraph (c) of section 57 of the Act of 1933 the added areas shall be deemed always to have formed part of the city.

11. The persons who immediately before the appointed day are the county councillors representing the Blofield and Eastern Saint Faith's electoral divisions of the county shall respectively be deemed to have been elected to represent those divisions as altered by this Act and shall retire on the day on which they would have retired if this Act had not been passed.

12. Subject to the provisions of any order made or to be made by the county council under section 141 of the Act of 1933 the rural councils shall continue and shall be deemed to have been elected as and shall be the rural district councils of the respective rural districts as altered by this Act and the persons who immediately before the appointed day are the rural district councillors for the existing parishes of Thorpe next Norwich and Sprowston respectively shall continue to represent those parishes respectively as altered by this Act on the rural councils respectively until the day or days upon which they would have retired respectively from office if this Act had not been passed.

Parish
councils
and parish
councillors.

13. Subject to the provisions of any order made or to be made by the county council under section 141 of the Act of 1933 the parish councils shall as from the appointed day be deemed to have been elected as and shall be the parish councils of the respective parishes of Thorpe next Norwich and Sprowston as altered by this Act.

Casual
vacancies.

14. Any casual vacancy which may exist on the appointed day in the office of city councillor county councillor rural district councillor or parish councillor for any ward electoral division or parish which by virtue of this Act is altered shall be deemed to exist in the office of councillor for the altered area.

Powers property liabilities etc. of existing authorities

Corporation
property
liabilities etc.

15. Subject to the provisions of this Act all property immediately before the appointed day vested in the Corporation for the benefit of the existing city (not being property held on any charitable trust) shall by virtue of this Act be held by the Corporation for the benefit of the city and the Corporation shall hold enjoy and exercise for the benefit of the city all the powers which immediately before that day are exercisable by or vested in the Corporation for the benefit of the existing city and all liabilities which immediately before the appointed day attach to the Corporation in respect of the existing city shall on that day attach to them in respect of the city.

Debts of
county and
rural councils.

16. Subject to the provisions of this Act and to any necessary adjustment—

- (1) The liability for the repayment of so much of any moneys borrowed by the county council or by either of the rural councils or their respective predecessors for a purpose relating exclusively to any part of the added areas as immediately before the appointed day is owing and for the payment of interest thereon shall by virtue of this Act be transferred to and attach to the Corporation and shall be a matter for adjustment under this Act ;
- (2) So much of any moneys borrowed as aforesaid as immediately before the appointed day is owing shall by virtue of this Act be charged upon the revenues of the Corporation ;
- (3) Nothing in this Act shall prejudice or affect the validity of any mortgage or other security which has been granted in respect of any borrowed moneys the liability for the repayment of which is transferred to the Corporation by subsection (1) of this section or prejudice or diminish the powers of any person entitled under any such mortgage or other security to enforce the same as if this Act had not been passed and where for any

such purpose it is necessary to continue the exercise of a power which would have existed but for this Act the power may continue to be exercised as if this Act had not been passed and the general rate shall for any such purpose be levied and have effect in substitution for the rate which would have been leviable if this Act had not been passed.

17. The county council the standing joint committee of the Powers of county the rural councils (except as provided in section 29 (Con- county rural tribution orders precepts and arrears of rates) of this Act) and and parish the parish councils shall cease to exercise any powers or dis- councils. charge any duties within any part of the added areas.

18. Subject to the provisions of this Act and to any Property necessary adjustments— etc. of rural councils and parish councils.

(a) Any property or liabilities which immediately before the appointed day is or are vested in or attach to either of the rural councils or either of the parish councils in relation exclusively to any part of the added areas shall by virtue of this Act be transferred to and vest in or attach to the Corporation and shall be a matter for adjustment under this Act ;

(b) Any property or liabilities which immediately before the appointed day is or are vested in or attach to any of the said councils in relation to any part of the added areas conjointly with any other area shall be a matter for adjustment under this Act.

19. In relation to any child who is on the appointed day in the care of the county council under section 1 of the Children Act 1948 and who when he was received into their care was ordinarily resident in the added areas subsection (4) of the said section 1 shall without prejudice to the powers of the Secretary of State to determine any questions arising under the subsection as to ordinary residence have effect as if the child being on the appointed day resident in the city had on that day been received into the care of the county council under the said section 1. Transfer of duties under section 1 of Children Act 1948. 11 & 12 Geo. 6. c. 43.

20.—(1) The Minister may by order made before the Executive appointed day make such provision as seems to him expedient for all or any of the following matters:—

(a) for providing that the names of medical practitioners who immediately before the appointed day are providing general medical services in the added areas under the National Health Service Act 1946 shall be included in the medical list of the executive council of the city ; 9 & 10 Geo. 6. c. 81.

(b) for providing that any services under Part IV of the said Act of 1946 commenced before the appointed day shall or may be completed as if this Act had not been passed ;

- (c) for providing for the transfer to the executive council of the city of any property rights or liabilities of the executive council of the county which relate exclusively to the added areas ;
- (d) for the making of financial adjustments between the said executive councils ;
- (e) for providing that the executive council of the county shall continue to act as the executive council for the added areas until such date as may be specified in the order not being later than the thirty-first day of December nineteen hundred and fifty-one ; and
- (f) for any supplementary or incidental matters.

(2) Any order made under this section may be revoked or varied by a subsequent order of the Minister made before or after the appointed day.

(3) Subject to any order made under this section the persons who immediately before the appointed day are members of the respective executive councils of the county and the city shall be deemed to have been appointed as and shall be members of the respective executive councils of the county and the city as altered by this Act.

Administration of justice and county administration

Jurisdiction of
city justices
coroner etc.
extended.¶

21.—(1) The powers and duties of the quarter sessions recorder sheriff coroner and clerk of the peace of the existing city of the Norwich Guildhall Court and of the judge and other officers thereof of the justices of the peace appointed for the existing city and of the clerk to those justices and of the police constables and other peace officers of the existing city shall extend to and apply throughout the city :

Provided that—

- (a) every person alleged to have committed an offence in any part of the added areas before the appointed day shall be tried and dealt with as if this Act had not been passed ;
- (b) any proceeding which before the appointed day has been begun by or is pending before any coroner or any justice in relation to any matter arising in or concerning the added areas or any part thereof may be carried on continued and completed in like manner and with the like incidents and consequences as nearly as may be as if this Act had not been passed.

(2) The added areas shall cease to form part of any petty sessional division or coroner's division of the county or of any probation area comprised in the county.

(3) (a) Where immediately before the appointed day a probation order made or having effect as if made under section 3 of the Criminal Justice Act 1948 is in force and the probationer 11 & 12 Geo. 6. is residing in any part of the added areas the supervising court c. 58. may if a petty sessional division of the county is named in the order amend the order under paragraph 2 of the First Schedule to that Act as if the probationer had changed his residence.

(b) Nothing in the proviso to subsection (1) of this section shall be construed in relation to any probation order whenever made as preventing the justices of the peace for the city as the supervising court from dealing with the probationer in pursuance of any power conferred upon them by the said Act of 1948.

22.—(1) On the appointed day such members (if any) of the County police. police force of the county as before that day shall have been determined by agreement subject to the approval of the Secretary of State between the standing joint committee of the county and the watch committee of the city or in default of agreement by the Secretary of State shall be transferred to and become part of the police force of the city:

Provided that no member of the police force of the county shall be so transferred without his consent.

(2) Every member of the police force of the county who is transferred in accordance with the provisions of subsection (1) of this section shall be deemed to have been duly appointed as a member of the police force of the city under section 191 of the Municipal Corporations Act 1882 and to have been duly attested 45 & 46 Vict. as such and shall hold in that force the same rank as he held c. 50. immediately before the appointed day in the police force of the county.

(3) Where a member of a police force of the county is so transferred he shall be deemed for the purposes of any regulations made under the Police Act 1919 and the Police Pensions Act 9 & 10 Geo. 5. 1948 to have left the police force of the county with the written c. 46. consent of the chief constable of the county for the purpose of 11 & 12 Geo. 6. c. 24. joining the police force of the city.

Local Acts adoptive Acts byelaws etc.

23.—(1) (a) The unrepealed provisions of the local Acts and Acts orders any other local Act affecting the existing city or the byelaws etc. Corporation thereof and in force within the existing city immediately before the appointed day;

(b) the provisions of any public general Act in force throughout the existing city immediately before the appointed day by virtue of an adoption by the council or their predecessors and any order in force under such Act throughout the existing city;

4 Edw. 7. c. 31.

(c) any order made under the Shop Hours Act 1904 or under the Shops Acts 1912 to 1938 and in force immediately before the appointed day in the existing city ;

(d) any order made under the Wild Birds Protection Acts 1880 to 1939 and in force immediately before the appointed day in the existing city ; and

7 Edw. 7. c. 53.
15 & 16 Geo. 5.
c. 71.

(e) any order made before the appointed day and declaring to be in force throughout the existing city any parts or sections of the Public Health Acts Amendment Act 1907 or the Public Health Act 1925 ;

shall extend and apply to the city and any reference therein to the existing city or the Corporation thereof shall be deemed to refer to the city and the Corporation.

(2) (a) The provisions of any public general Act in force in the added areas immediately before the appointed day by virtue of an adoption by either of the rural councils or their respective predecessors and any order in force under such Act in the added areas ; and

(b) the provisions of any such order as is referred to in paragraphs (c) (d) or (e) of subsection (1) of this section and in force immediately before the appointed day in any part of the added areas ;

shall cease to have effect in relation to the added areas.

(3) The provisions of any protective section for the benefit of the county council or either of the rural councils or either of the parish councils or the predecessors of any of such councils contained in any local Act or Order by whomsoever obtained so far as they relate to or affect any part of the added areas shall enure on and after the appointed day to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to any of such councils or their predecessors as the case may be.

(4) Nothing in this section shall prejudice or affect the rights and powers of the British Electricity Authority or the Eastern Electricity Board.

Byelaws
regulations
and scales
of charges.

24.—(1) (a) All local government byelaws in force within the existing city immediately before the appointed day shall continue to apply to the existing city until repealed or altered by the Corporation.

(b) Any such byelaw may by a byelaw be extended with or without modification to the added areas.

(2) All local government byelaws in force within any part of the added areas immediately before the appointed day shall continue to apply to such part for one year after the appointed day

(unless previously repealed or altered by the Corporation) but shall on the expiry of one year after the appointed day cease to be in force within the added areas.

(3) In their application to the added areas any byelaws continued in force by the foregoing provisions of this section shall have effect as if they had been made by the Corporation and as if the added areas or the part thereof to which such byelaws apply were referred to therein instead of the area to which they originally applied.

(4) All byelaws other than local government byelaws made by the Corporation or by the watch committee of the existing city and in force immediately before the appointed day shall apply to the city until repealed or altered and any such byelaws made by the county council or the standing joint committee of the county or by either of the rural councils shall on that day cease to apply within the added areas.

(5) Any proceedings which if this Act had not been passed might have been taken for any offence against any byelaw committed before the appointed day within the added areas may be taken by the Corporation.

(6) In this section "byelaws" includes any regulation scale of charges list of tolls or table of fees or payments and the phrase "local government byelaws" means byelaws which if they had been made immediately before the appointed day would have required to be confirmed by the Minister.

25. The Sunday Entertainments Act 1932 shall from the appointed day apply to the city as before that day it applied to the existing city.

Sunday
Entertainments
Act 1932,
22 & 23 Geo. 5.
c. 51.

26. The licensing planning area of the city constituted by the Norwich Licensing Planning Area Order 1945 made by the Secretary of State in pursuance of the Licensing Planning (Temporary Provisions) Act 1945 is hereby extended to include the added areas.

Extension of
licensing
planning area.
8 & 9 Geo. 6.
c. 15.

27.—(1) The area of the Corporation as burial board for the existing city shall be altered by the inclusion in such area of the added areas and the Corporation shall have within such area as so altered to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906.

Burial board.

(2) Any table of fees and charges in force in respect of any existing burial ground maintained by the Corporation shall extend and apply to inhabitants of the burial area of the Corporation as altered by this section as such table applies to inhabitants of the existing burial area of the Corporation.

(3) Except as by this Act expressly provided nothing therein shall prejudice or affect any right of burial or of constructing a burial place or of erecting or placing any monument tablet gravestone or inscription which any person may have acquired before the appointed day or prejudicially affect any right privilege or authority which immediately before the appointed day is exercisable by or attaches to any incumbent or sexton under the Burial Acts 1852 to 1906.

Rating and valuation

Apportionment
of balances
and sums
received
under
precepts.

28.—(1) As soon as practicable after the appointed day the county council and the rural councils and the parish councils shall as regards any cash balances in their hands respectively at the appointed day estimate the proportion thereof derived from such sums received before the appointed day by such councils respectively under a precept issued or rate made as are attributable to rates received by the appropriate rating authority in respect of hereditaments in any part of the added areas and subject to a deduction on account of the like proportion of such part of the undischarged liabilities of the respective councils accrued up to the appointed day as will fall to be met thereafter out of the moneys received under any precept issued or rate made before the appointed day and applicable to any part of the added areas shall transfer such amount to the Corporation.

(2) Any sum received on or after the appointed day by the county council or either of the rural councils or either of the parish councils under a precept issued or rate made before that day in respect of any part of the added areas shall be dealt with in the manner prescribed by subsection (1) of this section.

(3) The apportionment under this section of any balance or sum received shall be subject to review on an adjustment under this Act.

Contribution
orders
precepts
and arrears
of rates.

29.—(1) Notwithstanding the alteration of areas effected by this Act all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Act had not been passed.

(2) All rates not collected immediately before the appointed day in respect of hereditaments within the added areas shall be collected and recovered as if this Act had not been passed.

(3) Any rates or sums so collected or recovered shall be a matter for adjustment under this Act.

Differential
rating.

30.—(1) For the purposes of this section “the local authority” means either of the rural councils or either of the parish councils.

(2) The Minister may if he thinks fit on the application of the local authority (such application to be made in writing

before the expiration of a period of two months after the passing of this Act) order that for the period or periods (not exceeding five years) stated in the order the total amount in the pound of the general rate to be made and levied upon rateable hereditaments existing immediately before the appointed day situate in any part of the added areas shall be less than the total amount in the pound of the general rate to be made and levied upon hereditaments within the area of the existing city by such sum or sums (if any) as may seem equitable to him after considering any representations which may be made to him by the Corporation.

31. For the purposes of all valuation lists of the city under the Rating Act the amount of the deduction to be made under paragraph (c) of subsection (1) of section 22 of that Act from the net annual value of such rateable hereditaments within the added areas as are included in class (3) of the hereditaments specified in column (1) of Part II of the Second Schedule to that Act shall notwithstanding the provisions of any Act be the same as the deduction made from the net annual value of similar hereditaments in the existing city.

Deduction in
ascertaining
rateable value
of certain
properties.

32.—(1) The added areas shall be deemed to form part of the rating area of the city.

Rating
area and
valuation lists.

(2) The valuation list of the existing city and the portions of the valuation lists of the rural districts which relate to hereditaments within the added areas (modified as may be necessary to give effect to the provisions of section 31 (Deduction in ascertaining rateable value of certain properties) of this Act) shall together form the valuation list of the city as from the appointed day.

(3) The remaining portion of the valuation list of each of the rural districts shall be the valuation list of that district as from the appointed day.

Officers

33. The town clerk and all other officers and servants of the Corporation of the existing city who hold office immediately before the appointed day shall continue to be the town clerk and officers and servants of the Corporation of the city and shall hold their offices by the same tenure as before that day.

Officers of
Corporation
continued.

34. The auditors of the existing city elected or appointed under section 237 of the Act of 1933 who are in office on the appointed day shall continue in office until their successors are elected or appointed.

City auditors.

Supplementary provisions

Parish books
and
documents.

35.—(1) All public books writings and papers of either of the existing parishes affected by this Act in relation exclusively to any part of the added areas and all documents relating to any part of the added areas and directed by law to be kept with the public books writings and papers of such parish (except any book or document relating to the affairs of the church or to ecclesiastical charities or to a parochial non-ecclesiastical charity) and all plans papers and writings of the county council and the rural councils relating exclusively to any part of the added areas shall be deposited in such custody as the Corporation may direct.

(2) Any ratepayer of either of the existing parishes any part of which is comprised in the added areas shall at all times have the same right of inspection and of making extracts from the public books writings papers and documents referred to in this section as he would have had if this Act had not been passed.

Provisions as
to register
of electors.

36.—(1) For the purposes of the register of local government electors of the city prepared in the year nineteen hundred and fifty-one and of all matters connected with incidental to or consequent upon those purposes the added areas shall be deemed to have formed part of the city as from the qualifying date for elections for which that register is to be used.

(2) If the register of local government electors for any electoral area affected by this Act is not so framed as to show the persons entitled to vote at an election to be held for an electoral area—

(a) the town clerk in the case of an election for any voting area within the city ; and

(b) the registration officer of the constituency or registration area in the case of an election for any voting area outside the city ;

shall make such alteration or rearrangement of the register as may be necessary for the purposes of such election.

(3) The additional expense incurred by the town clerk or a registration officer which may be solely attributable to an alteration or rearrangement of the register of electors under this section shall be defrayed by the Corporation.

(4) Where in the opinion of the Secretary of State the circumstances so require he may make such order as appears to him to be necessary or desirable to give effect to the provisions of this section and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Jury service.

37. For the purpose of summoning jurors and of jury service either of the existing parishes shall be deemed to continue unaltered until a new jurors' book for the parish as altered comes into force.

38.—(1) The local registrars for the county and the rural districts respectively under the Land Charges Act 1925 and the rules made thereunder shall within one month after the appointed day supply to the local registrar for the city an office copy of every entry in the local land charges register relating to any land situate within the added areas and shall be paid by the Corporation in respect thereof such fees as are prescribed by the said rules.

Local land
charges
registers.
15 Geo. 5.
c. 22.

(2) The local registrar for the city shall within one month after the receipt of the office copy mentioned in subsection (1) of this section enter the same with any necessary modifications in the appropriate part of the local land charges register of the city.

(3) Until the entries are made as aforesaid or until the expiration of two months from the appointed day whichever be the earlier day the following provisions shall have effect in respect of all land within the added areas:—

- (a) The local registrar for the city shall give notice to any person desiring to make a personal search that an additional search should be made in the register for the appropriate rural district and in the register for the county;
- (b) Where application is made for an official search the local registrar for the city shall issue free of charge a certificate of official search in the register of the city and shall forward to the local registrar for the appropriate rural district the application received by him together with the fees paid in respect thereof and shall also forward to the local registrar for the county a copy of the application;
- (c) The local registrars for each of the rural districts and the local registrar for the county shall permit and make such searches and furnish such office copies and certificates as they would have been required to permit make and furnish and shall in relation thereto have the same powers and be subject to the same obligations as if this Act had not been passed;
- (d) The fees in respect of searches permitted or made and in respect of certificates furnished by the local registrar for the county in pursuance of the provisions of paragraph (c) of this subsection shall be paid by the Corporation;
- (e) Where an entry of a local land charge which has been duly made in the local land charges register of the county or of either of the rural districts is required by this section to be transferred from the register of such county or district to the register of the city such charge

shall not be void as against a purchaser for money or money's worth of a legal estate in the land affected thereby by reason only that it has not been entered in the register of the city.

Entries in
registers.

39.—(1) The clerk of the county council and the clerk of each of the rural councils shall as soon as may be after the passing of this Act and in any case before the appointed day send to the town clerk without charge a copy of every entry in any register of the county council or of that rural council as the case may be under any enactment rule order or regulation for the time being in force which relates to any property matter or thing in or which otherwise affects the added areas and the town clerk shall include in the appropriate register of the Corporation the particulars respectively furnished by the clerk of the county council and by the clerks of the rural councils.

(2) Subsection (1) of this section shall not extend to any matter for which provision is made in section 38 (Local land charges registers) or in section 40 (Town planning) of this Act.

(3) In this section "register" includes a list kept under section 21 of the Pharmacy and Poisons Act 1933.

23 & 24 Geo. 5.
c. 25.
Town
planning.

10 & 11 Geo. 6.
c. 51.

40.—(1) As from the passing of this Act the Corporation shall be entitled at all reasonable times to inspect and take copies of all plans or documents relating to any land within the added areas which are in the possession or under the control of the county council or either of the rural councils for the purposes of or in connection with the Town and Country Planning Act 1947 and the county council and the rural councils shall supply to the Corporation such information and shall afford to them such assistance for the purposes of or in connection with the said Act as the Corporation may reasonably require.

(2) An office copy of every entry in the register relating to any land within the added areas kept by the county council under section 14 of the said Act of 1947 shall within one month after the appointed day be supplied to the town clerk without charge by the clerk of the county council or the clerk of either of the rural councils having the custody of that part of the register in which the entry appears as the case may be.

(3) The town clerk shall within one month after the receipt of the office copy mentioned in subsection (2) of this section enter the same with any necessary modifications in the register kept by the Corporation under section 14 of the said Act of 1947.

(4) Any application for planning permission or for any consent or approval under the said Act of 1947 or for a determination under section 17 of that Act made to the county council or either of the rural councils on their behalf before the appointed day and not determined before that day shall so far as it relates

to land within the added areas be treated as a like application made to the Corporation and shall be treated as having been so made on the appointed day:

Provided that it shall not be necessary for the Corporation to consult with any authority person or body with whom consultation has already taken place in relation to that application.

(5) Any order agreement permission approval determination consent notice proceeding or decision made taken or given by the county council as local planning authority under the said Act of 1947 or having effect as if so made taken or given and in force immediately before the appointed day shall so far as it relates to any land within the added areas have effect as if it had been made taken or given by the Corporation as such authority in respect of that land.

(6) Any direction approval consent or decision given by the Minister of Town and Country Planning or the Minister of Transport under or in pursuance of the said Act of 1947 or any enactment thereby repealed affecting the county council as local planning authority and in force immediately before the appointed day shall so far as it relates to any land within the added areas have effect as if the same had been given to the Corporation as local planning authority.

41. Nothing in this Act shall affect the area of any existing registration district or sub-district without prejudice however to the exercise of the powers contained in sections 24 and 131 of the Act of 1929. As to registration districts.

42.—(1) Where in consequence of any alteration of areas or authorities made by this Act any adjustment of any property income debts liabilities or expenses so far as they are affected by the alteration is required an adjustment shall be made between the councils or other authorities affected under and in accordance with sections 151 and 152 of the Act of 1933. Financial adjustments.

(2) This section shall not extend to any matter for the adjustment of which provision is made in any other Act.

43.—(1) No alteration effected by this Act shall affect any notices given or proceedings taken under section 150 of the Public Health Act 1875 or the Private Street Works Act 1892 in relation to any street situate within the added areas or any part thereof but such proceedings may be continued and completed in accordance with the provisions of the said Act as if this Act had not been passed. Saving for private street works. 38 & 39 Vict. c. 55. 55 & 56 Vict. c. 57.

(2) Where before the appointed day any works under section 150 of the Public Health Act 1875 or the Private Street Works Act 1892 have been completed in a street situate within the added areas or any part thereof no alteration effected by this Act shall affect the liability of any owner to defray any sum

which may be or has been apportioned upon him in respect of the cost of the works and any such sum shall be recoverable by the authority who would have been entitled to recover the same if this Act had not been passed and in the like manner.

Saving for
qualification of
aldermen and
councillors.

44. Any alderman or councillor who is to continue in office after the appointed day shall not during his term of office current immediately before that day be deemed to lose his qualification for being an alderman or councillor by reason of the alterations of area made by this Act.

Savings
for actions
contracts etc.

45.—(1) No alteration effected by this Act in the area of any local or other authority shall cause to abate or shall prejudicially affect or prevent the continuance of any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority or any contract deed bond agreement or other instrument (subsisting immediately before the appointed day) entered into or made by any such authority or their predecessors:

Provided that—

- (a) any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any such authority in relation exclusively to any part of the added areas may be continued prosecuted and enforced by or against the Corporation ; and
- (b) all contracts deeds bonds agreements and other instruments (subsisting immediately before the appointed day) entered into or made by any such authority (or their predecessors) in relation exclusively to any part of the added areas shall continue in force as fully and effectually as if instead of such authority (or their predecessors) the Corporation had been a party thereto.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Act.

Other saving
provisions.

46. Nothing in this Act shall—

- (a) be construed as restricting any power under the Act of 1929 or the Act of 1933 of altering any of the areas or the constitution of any authority or committee ;
- (b) alter the area of any constituency or affect the powers of the Corporation or the county council under section 11 of the Representation of the People Act 1949 with regard to the division of a constituency into polling districts ;

12 & 13 Geo. 6.
c. 68.

- (c) alter the area of any ecclesiastical parish or prejudice vary or affect any power right interest or jurisdiction in over or in connection with any charitable endowment ;
- (d) (save as in this Act expressly provided) affect the provisions of the Rating and Valuation Acts 1925 to 1940 or of Parts III and IV of the Local Government Act 1948 ; 11 & 12 Geo. 6.
c. 26.
- (e) affect land tax.

Finance

47.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums requisite for those purposes and shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the second column of the said table (namely):—

1	2
Purpose	Period for repayment
(a) The purpose of making any payment to any authority under this Act or under any enactment the provisions of which are applied thereby.	Forty-five years from the date or dates of borrowing.
(b) The payment of the costs charges and expenses of this Act.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

48. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946. Saving for powers of Treasury.
8 & 9 Geo. 6.
c. 18.
9 & 10 Geo. 6.
c. 58.

Inquiries by
Minister.

49. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him by or the giving of any consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Costs of Act.

50. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

SCHEDULE

PART I
LOCAL ACTS

Session and chapter	Title or short title
12 Geo. 1. c. 15 ...	An Act for repairing the walls gates and other public works in the city of Norwich and several bridges in and near the said city and for amending the roads therein mentioned.
46 Geo. 3. c. lxxvii ...	An Act for better paving lighting cleansing watching and otherwise improving the city of Norwich.
6 Geo. 4. c. lxxviii ...	An Act for amending and enlarging an Act of His late Majesty for better paving lighting cleansing watching and otherwise improving the city of Norwich.
2 & 3 Vict. c. lxii ...	An Act to repeal so much of an Act passed in the twelfth year of the reign of His late Majesty King George the First for repairing the walls gates and other public works in the city of Norwich and several bridges in and near the said city and for amending the roads therein mentioned as relates to the application of the tolls and duties thereby authorized to be raised and to provide a new mode of application thereof.
23 Vict. c. xxxiv ...	The Norwich Corporation Markets Act 1860.
25 Vict. c. iii ...	The Norwich Corporation Markets Act 1862.
30 & 31 Vict. c. cii ...	The City of Norwich Act 1867.
42 & 43 Vict. c. cxxv ...	The Norwich Improvement Act 1879.
52 & 53 Vict. c. clxxxvii	The Norwich Corporation Act 1889.
2 Edw. 7. c. cliii ...	The Norwich Corporation (Electricity &c.) Act 1902.
10 & 11 Geo. 5. c. xcv	The Norwich Corporation Act 1920.
23 & 24 Geo. 5. c. xxvii	The Norwich Corporation Act 1933.

PART II

CONFIRMATION ACTS AND ORDERS

Session and chapter	Short title	Order or scheme thereby confirmed
14 & 15 Vict. c. xcvi	The Public Health Supplemental Act 1851 (No. 2).	Order of the General Board of Health dated the 4th day of June 1851 relating to the city and county of the city of Norwich.
40 & 41 Vict. c. ccxli	The Local Government Board's Provisional Orders Confirmation (Artizans and Labourers Dwellings) Act 1877.	Order dated the 16th May 1877 relating to the city of Norwich.
47 Vict. c. iii	The City of Norwich Mousehold Heath Scheme Confirmation Act 1884.	Scheme certified by the Land Commissioners for England under the City of Norwich Act 1867 on the 20th day of December 1883.
7 Edw. 7. c. clxiii	Local Government Board's Provisional Orders Confirmation (No. 13) Act 1907.	Norwich (Extension) Order 1907.
25 & 26 Geo. 5. c. lxxvi	Ministry of Health Provisional Order Confirmation (Norwich) Act 1935.	The Norwich Order 1935.
3 & 4 Geo. 6. c. xxvi	Ministry of Health Provisional Order Confirmation (Norwich) Act 1940.	The Norwich Order 1940.
9 & 10 Geo. 6. c. lviii	Ministry of Health Provisional Order Confirmation (Norwich) Act 1946.	The Norwich Markets Order 1946.

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4. Interpretation.

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6. Accounts of port and harbour undertaking.
7. Amendment of Third Schedule of Act of 1889.
8. Revision of rates.

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12. Application of Act of 1847.
13. Byelaws as to markets and fairs.
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